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Case Number: 25STCV16008 Hearing Date: September 24, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

September 24, 2026

CASE NUMBER

25STCV16008

MOTION

Demurrer to First Amended Complaint

Motion to Strike Portions of First Amended Complaint

MOVING PARTY

Defendants Seco Canyon Homeowners Association, HOA Organizers, Inc., Larry Andrick, and Jennifer Calderon

OPPOSING PARTY

Plaintiffs Mary M. Perez and Christopher Ross

MOTION

Plaintiffs Mary M. Perez and Christopher Ross ("Plaintiffs") sued Defendants Seco Canyon Homeowners Association, HOA Organizers, Inc., Larry Andrick, and Jennifer Calderon ("Calderon," collectively, "Defendants") because Plaintiffs contend Defendants improperly required Plaintiffs to pay for repairs due to a leak in the roof of Plaintiffs' condominium. Defendants demur to the third, fifth, and sixth causes of action in Plaintiffs' first amended complaint. Defendants also move to strike portions of the first amended complaint. Plaintiffs oppose the motions.

ANALYSIS

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In ruling on a demurrer, the court must "liberally construe[]" the allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant." (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); Stafford v. Shultz (1954) 42 Cal.2d 767, 782.)

Third cause of action: negligent interference with prospective economic advantage

Plaintiffs' third cause of action is for negligent interference with prospective economic advantage. The elements of a cause of action for negligent interference with prospective economic advantage are: (1) an economic relationship between the plaintiff and a third party; (2) that contained a reasonably probable future economic benefit or advantage to plaintiff; (3) the defendant knew of the existence of the relationship and was aware, or should have been aware, that if it did not act with due care, its actions would interfere with the relationship and cause the plaintiff to lose in whole or in part the probable future economic benefit or advantage; (4) the defendant was negligent; (5) the negligence caused damage to the plaintiff because of an actual interference or disruption; and (6) the plaintiff lost in whole or in part the economic benefits or advantage reasonably expected from the relationship. (North American Chemical Co. v. Superior Court (1997) 59 Cal.App.4th 764, 786.) Here, Plaintiffs allege, "Plaintiffs had entered into a preliminary purchase agreement with specific buyers, who had submitted a written offer of (amount or other demonstration of intent to purchase)." (First Amended Complaint, ¶ 71.) Plaintiff alleges that "Defendants knew or should have known of these prospective economic relationships [because] Plaintiffs specifically informed Defendant CALDERON in August 2023 that they were considering selling their unit and needed the roof issues resolved to proceed with the sale." (First Amended Complaint, ¶ 72.) Plaintiffs allege that Defendants' conduct caused "the withdrawal of interest by potential buyers in September 2023 . . ." (First Amended Complaint, ¶ 76.) For pleading purposes, Plaintiffs adequately allege that Plaintiffs had an existing relationship with buyers of the condo, which Defendants' failure to address the roofing issues disrupted. Plaintiffs need not allege negligent interference with prospective economic advantage with particularity. Defendants may obtain further information regarding Plaintiffs' claims in discovery. (Khouri v. Maly's of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Accordingly, the Court overrules the demurrer to the third cause of action.

Defendants argue that Plaintiffs cannot assert contract claims as tort claims. Defendants are incorrect. Defendants rely on Erlich v. Menezes (1999) 21 Cal.4th 543, which is not on point. In that case, the Supreme Court of California noted that conduct amounting to a breach of contract becomes tortious only when it also violates a duty independent of the contract and arising from principles of tort law. (Erlich v. Menezes (1999) 21 Cal.4th 543, 550.) Plaintiff alleges that Defendants violated their duty of care not to interfere with Plaintiffs' relationships with potential buyers of the condominium unit. As such, Plaintiffs state tort claims.

Fifth cause of action: intentional misrepresentation

Plaintiffs' fifth cause of action is for intentional misrepresentation. Plaintiffs must allege fraud with particularity. "This means: (1) general pleading of the legal conclusion of fraud is insufficient; and (2) every element of the cause of action for fraud must be alleged in full, factually and specifically, and the policy of liberal construction of pleading will not usually be invoked to sustain a pleading that is defective in any material respect." (Wilhelm v. Pray, Price, Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) "The elements of fraud, which give rise to the tort action for deceit, are (1) a misrepresentation, (2) with knowledge of its falsity, (3) with the intent to induce another's reliance on the misrepresentation, (4) justifiable reliance, and (5) resulting damage." (Conroy v. Regents of University of California (2009) 45 Cal.4th 1244, 1255.) Plaintiffs allege, "Defendants made numerous misrepresentations of material fact to Plaintiffs, including but not limited to: [¶] That Plaintiffs were responsible for the roof damage due to supposed owner modifications or negligence when in fact, these conditions existed prior to Plaintiffs' ownership; [¶] That a 'comprehensive water test' had been performed that conclusively demonstrated Plaintiffs' responsibility, when in fact no such test ever existed or [was] provided to Plaintiffs for review; [¶] That the roof vents causing the leaks had been installed by Plaintiffs when in fact they were original to the building; [¶] That the roof had been properly repaired when it had not been; [¶] That Defendants had evidence supporting their claims against Plaintiffs; [¶] That the reimbursement assessment was proper and justified under the CC&Rs and California law; and [¶] Other material misrepresentations regarding the maintenance and repair of the roof and Plaintiffs' responsibility for costs." (First Amended Complaint, ¶ 86.) These allegations are not of misrepresentations of fact. Plaintiffs allege, in essence, that Defendants disagreed with Plaintiffs regarding responsibility for the issues with the roof of Plaintiffs' unit. Furthermore, Plaintiffs do not allege who made these representations to Plaintiffs, when, or in what context. Plaintiffs must amend to state specific factual misrepresentations that Defendants made to Plaintiffs, on which Plaintiffs detrimentally relied. The Court sustains the demurrer to the fifth cause of action for intentional misrepresentation with leave to amend.

Sixth cause of action: negligent misrepresentation

Plaintiffs' sixth cause of action is for negligent misrepresentation. To state a cause of action for negligent misrepresentation, Plaintiffs must allege that Defendants asserted a false fact, which Defendants believed to be true without reasonable grounds for that belief, that Defendants intended to induce Plaintiffs' reliance on the false fact, that Plaintiffs justifiably relied on the false fact, and Plaintiffs sustained damages. (Melican v. Regents of Univ. of Cal. (2007) 151 Cal.App.4th 168, 182.) Plaintiffs' cause of action for negligent misrepresentation is based on the same alleged misrepresentations. (First Amended Complaint, ¶ 95.) As set forth above, these allegations are insufficient. The Court sustains the demurrer to the sixth cause of action with leave to amend.

The Court has already provided Plaintiffs with one opportunity to amend the complaint to support the fifth and sixth causes of action. Plaintiffs failed to do so. However, in an abundance of caution, the Court will provide Plaintiffs with one final opportunity to amend. (See City of Stockton v. Superior Court (2007) 42 Cal.4th 730, 747.)

Punitive damages

Defendants also move to strike the punitive damages allegations. In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud or malice. (Civ. Code, § 3294, subd. (a).) "Malice is defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Ct. (1984) 157 Cal.App.3d 159, 166, internal citations and footnotes omitted.) Plaintiffs do not allege any specific facts to show that Defendants acted with oppression, fraud, or malice. Instead, Plaintiffs allege that Defendant's conduct "was designed to shift financial responsibility to Plaintiffs and justifies an award of punitive and exemplary damages sufficient to punish and deter such misconduct." (First Amended Complaint, ¶ 93.) Again, Plaintiffs allege, in essence, that Defendants disagreed with Plaintiffs regarding responsibility for the issues with the roof of Plaintiffs' unit. These allegations are not of specific facts that would justify the imposition of punitive damages. Plaintiffs must amend.

CONCLUSION AND ORDER

Defendants' demurrer to Plaintiffs' third cause of action is overruled. Defendants' demurrer to the fifth, and sixth causes of action is sustained with leave to amend.

Defendants' motion to strike Plaintiffs' punitive damages allegations is granted with leave to amend.

Plaintiffs are to file an amended complaint within 10 days of notice of this order.

Defendants are ordered to provide notice of this order and file proof of service of such.

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

September 24, 2026

CASE NUMBER

25STCV16008

MOTION

Demurrer to First Amended Complaint

Motion to Strike Portions of First Amended Complaint

MOVING PARTY

Defendants Tony

Brasil and BRS Roofing, Inc.

OPPOSING PARTY

Plaintiffs Mary M. Perez and Christopher Ross

MOTION

Plaintiffs

Mary M. Perez and Christopher Ross ("Plaintiffs") sued Defendants Tony Brasil

and BRS Roofing, Inc. ("Defendants") because Plaintiffs contend Defendants

improperly completed testing and repairs to a leak in the roof of Plaintiffs'

condominium. Defendants demur to the

second, third, fifth, and sixth causes of action in Plaintiffs' first amended complaint. Defendants also move to strike portions of

the first amended complaint. Plaintiffs

oppose the motions.

ANALYSIS

"It is black

letter law that a demurrer tests the legal sufficiency of the allegations in a

complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385,

388.) In ruling on a demurrer, the court must "liberally construe[]" the

allegations of the complaint. (Code Civ. Proc., § 452.) "This rule of liberal construction means that

the reviewing court draws inferences favorable to the plaintiff, not the

defendant." (Perez v. Golden Empire Transit Dist. (2012) 209

Cal.App.4th 1228, 1238.)

Any party, within

the time allowed to respond to a pleading, may serve and file a motion to

strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322,

subd. (b).) On a motion to strike, the

court may: (1) strike out any irrelevant, false, or improper matter inserted in

any pleading; or (2) strike out all or any part of any pleading not drawn or

filed in conformity with the laws of California, a court rule, or an order of

the court. (Code Civ. Proc., § 436,

subd. (a)-(b); *Stafford v. Shultz*

(1954) 42 Cal.2d 767, 782.)

Second cause of action:

promissory estoppel

Plaintiffs' second

cause of action is for promissory estoppel.

To state a claim for promissory estoppel, Plaintiffs must allege that

Defendants made a promise, which Defendants should reasonably have expected to

induce Plaintiffs' substantial reliance, and that Plaintiffs' reliance caused

injustice that can only be avoided by enforcement of Defendants' promise. (*C & K Eng'g Contractors v. Amber Steel*

Co. (1978) 23 Cal. 3d 1, 6.) Plaintiffs

allege, “Defendants repeatedly reaffirmed their obligations to maintain and repair the roof, to conduct proper investigations, and to act fairly in imposing any assessments, while simultaneously misrepresenting the cause of the damage, concealing or fabricating the existence and results of a purported ‘water test,’ and performing inadequate and ineffective repairs.” (First Amended Complaint, ¶ 69.) These allegations could state a cause of action for promissory estoppel against the parties Plaintiffs allege made these promises. However, Plaintiffs do not allege that Defendants made these promises.

Plaintiffs allege that Defendants “personally conducted inadequate inspections and repairs and knowingly provided false information regarding the condition of Plaintiffs’ roof.” (First Amended Complaint, ¶ 9.) Plaintiffs allege that Defendants “verbally informed Plaintiff[s] that the roof damage was the result of [Plaintiffs’] own negligence or modifications, and therefore [Plaintiffs’] responsibility . . . , when in reality, “the roof had not been properly tarred by [Defendants].” (First Amended Complaint, ¶ 31.) Plaintiffs do not allege any promises that Defendants made to Plaintiffs, on which Plaintiffs relied. Plaintiffs fail to state a cause of action for promissory estoppel against Defendants. The Court sustains the demurrer to the second

cause of action for promissory estoppel with leave to amend.

Third cause of action: negligent

interference with prospective economic advantage

Plaintiffs' third

cause of action is for negligent interference with prospective economic

advantage. The elements of a cause of

action for negligent interference with prospective economic advantage are: (1)

an economic relationship between the plaintiff and a third party; (2) that

contained a reasonably probable future economic benefit or advantage to plaintiff;

(3) the defendant knew of the existence of the relationship and was aware, or

should have been aware, that if it did not act with due care, its actions would

interfere with the relationship and cause the plaintiff to lose in whole or in

part the probable future economic benefit or advantage; (4) the defendant was

negligent; (5) the negligence caused damage to the plaintiff because of an

actual interference or disruption; and (6) the plaintiff lost in whole or in

part the economic benefits or advantage reasonably expected from the

relationship. (North American Chemical Co. v. Superior Court

(1997) 59 Cal.App.4th 764, 786.) Here,

Plaintiffs allege, "Plaintiffs had entered into a preliminary purchase

agreement with specific buyers, who had submitted a written offer of (amount or

other demonstration of intent to purchase).”

(First Amended Complaint, ¶ 71.)

Plaintiffs allege that “Defendants knew or should have known of these

prospective economic relationships [because] Plaintiffs specifically informed

Defendant CALDERON in August 2023 that they were considering selling their unit

and needed the roof issues resolved to proceed with the sale.” (First Amended Complaint, ¶ 72.) Plaintiffs allege that Defendants’ conduct

caused “the withdrawal of interest by potential buyers in September 2023 . .

.” (First Amended Complaint, ¶ 76.) Plaintiffs fail to allege that Defendants had

knowledge of Plaintiffs’ existing relationship with buyers of the condo. As set forth above, Plaintiffs merely allege

that Defendants “personally conducted inadequate inspections and repairs and

knowingly provided false information regarding the condition of Plaintiffs’

roof.” (First Amended Complaint, ¶

9.) Plaintiffs fail to allege a cause of

action for negligent interference with prospective economic advantage against

Defendants. The Court sustains the

demurrer to the third cause of action for negligent interference with

prospective economic advantage with leave to amend.

Fifth cause of action:

intentional misrepresentation

Plaintiffs' fifth

cause of action is for intentional misrepresentation. Plaintiffs must allege fraud with

particularity. "This means: (1) general

pleading of the legal conclusion of fraud is insufficient; and (2) every

element of the cause of action for fraud must be alleged in full, factually and

specifically, and the policy of liberal construction of pleading will not

usually be invoked to sustain a pleading that is defective in any material

respect." (Wilhelm v. Pray, Price,

Williams & Russell (1986) 186 Cal.App.3d 1324, 1331.) "The elements of fraud, which give rise to

the tort action for deceit, are (1) a misrepresentation, (2) with knowledge of

its falsity, (3) with the intent to induce another's reliance on the

misrepresentation, (4) justifiable reliance, and (5) resulting damage." (Conroy v. Regents of University of

California (2009) 45 Cal.4th 1244, 1255.)

Plaintiffs allege, "Defendants made numerous misrepresentations of

material fact to Plaintiffs, including but not limited to: [¶] That Plaintiffs

were responsible for the roof damage due to supposed owner modifications or

negligence when in fact, these conditions existed prior to Plaintiffs'

ownership" (First Amended

Complaint, ¶ 86.) These allegations are

not of misrepresentations of fact.

Plaintiffs allege, in essence, that Defendants disagreed with Plaintiffs

regarding responsibility for the issues with the roof of Plaintiffs' unit. Furthermore, Plaintiffs do not allege who

made these representations to Plaintiffs, when, or in what context. Plaintiffs must amend to state specific

factual misrepresentations that Defendants made to Plaintiffs, on which

Plaintiffs detrimentally relied. The

Court sustains the demurrer to the fifth cause of action for intentional

misrepresentation with leave to amend.

Sixth cause of action: negligent

misrepresentation

Plaintiffs' sixth

cause of action is for negligent misrepresentation. To state a cause of action for negligent

misrepresentation, Plaintiffs must allege that Defendants asserted a false

fact, which Defendants believed to be true without reasonable grounds for that

belief, that Defendants intended to induce Plaintiffs' reliance on the false

fact, that Plaintiffs justifiably relied on the false fact, and Plaintiffs

sustained damages. (Melican v. Regents of Univ. of Cal. (2007) 151

Cal.App.4th 168, 182.) Plaintiffs' cause

of action for negligent misrepresentation is based on the same alleged

misrepresentations. (First Amended

Complaint, ¶ 95.) As set forth above,

these allegations are insufficient. The

Court sustains the demurrer to the sixth cause of action for negligent

misrepresentation with leave to amend.

The Court has

already provided Plaintiffs with one opportunity to amend the complaint to

support the second, third, fifth, and sixth causes of action. Plaintiffs failed to do so. However, in an abundance of caution, the Court

will provide Plaintiffs with one final opportunity to amend. (See *City of Stockton v. Superior Court*

(2007) 42 Cal.4th 730, 747.)

Punitive damages

Defendants also

move to strike the punitive damages allegations. In ruling on a motion to strike punitive

damages, “judges read allegations of a pleading subject to a motion to strike

as a whole, all parts in their context, and assume their truth.” (*Clauson*

v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive

damages, a plaintiff must allege the elements set forth in the punitive damages

statute, Civil Code section 3294. (*Coll. Hosp., Inc. v. Superior Court* (1994)

8 Cal.4th 704, 721.) Per Civil Code

section 3294, a plaintiff must allege that the defendant has been guilty of

oppression, fraud or malice. (Civ. Code,

§ 3294, subd. (a).) “Malice is defined

in the statute as conduct intended by the defendant to cause injury to the

plaintiff or despicable conduct which is carried on by the defendant with a

willful and conscious disregard of the rights or safety of others.” (Coll.

Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) “The mere allegation an intentional tort was

committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of

oppression, fraud or malice, but facts must be alleged in the pleading to

support such a claim.” (Grieves v. Superior Ct. (1984) 157

Cal.App.3d 159, 166, internal citations and footnotes omitted.) Plaintiffs do not allege any specific facts

to show that Defendants acted with oppression, fraud, or malice. Instead, Plaintiffs allege that Defendant’s

conduct “was designed to shift financial responsibility to Plaintiffs and

justifies an award of punitive and exemplary damages sufficient to punish and

deter such misconduct.” (First Amended

Complaint, ¶ 93.) Again, Plaintiffs

allege, in essence, that Defendants disagreed with Plaintiffs regarding

responsibility for the issues with the roof of Plaintiffs’ unit. These allegations are not of specific facts

that would justify the imposition of punitive damages. Plaintiffs must amend.

CONCLUSION AND ORDER

Defendants’

demurrer to Plaintiffs’ second, third, fifth, and sixth causes of action is

sustained with leave to amend.

Defendants' motion

to strike Plaintiffs' punitive damages allegations is granted with leave to

amend.

Plaintiffs are to

file an amended complaint within 10 days of notice of this order.

Defendants are

ordered to provide notice of this order and file proof of service of such.